

does not, for the person skilled in the art, emerge clearly and unambiguously from the content of the application as filed (T 686/99, T 1853/13, T 1252/13). The fact that features in question have been mentioned in the description as **"preferred"** may act as a pointer (T 68/99, T 1869/11, T 394/11, T 1799/12; for counter-examples, see however T 2118/08 and T 1306/12). In T 1728/16 the fact that two of the features introduced in the claim at issue were disclosed as being preferred was seen as a pointer to their combination with the third amendment which introduced generally disclosed percentage ranges.

In T 524/17 appellant 2 had argued that the features of claim 1 were picked from different embodiments. The board however pointed out that in the application at issue the expression "in one embodiment" referred to general teachings of preferred features which were combinable without going beyond the content of the application as filed. See however also T 1442/16.

In T 3142/19 the examining division considered that in the absence of a positive hint to a combination of features that are otherwise presented as optional, any such combination was new technical information. In the board's view however, this argument was valid only in its positive form: if the description indicated that some combination was desirable, or necessary to solve a technical problem, then a clear pointer to disclosure of the combination was provided. If not, however, it did not automatically mean that the skilled person could not derive the combination from the application as filed. But an excessive number of optional features could have an impact on the assessment of compliance with Art. 123(2) EPC, in that, in a forest of optional features, a singled-out individual combination may not be clearly and unambiguously derivable by the skilled person. Whether this was indeed the case depended on the specifics of the case, e.g. on the level of complexity caused by the optional features.

For examples where the above principles were applied in the case of divisional applications in respect of the earlier application as filed, see T 2118/08, T 961/09, T 1581/12; see also the reference in chapter II.E.1.1. to G 1/05 (OJ 2008, 271).

b) Examples of cases where the combination was held to be unallowable

In T 389/13 the composition of claim 1 was defined on filing in a broad manner, its definition including a few structural features as well as two ranges of parametric values, with an indication in the rest of the application of preferences for said structural features and a definition of additional parameters which might be used to characterise the composition, as well as corresponding ranges of values. Subsequently some limits were introduced on the basis of said preferences or on the basis of said additional parameters and corresponding ranges of values. The board emphasised that allowing those various restrictions without there being any – even implicit – indication in the application as filed that the specific combination was envisaged would be unfair to third parties. It would give an applicant who filed a broad speculative claim an unwarranted advantage over other applicants who were the first to attribute any significance to a specific combination of parameters and their ranges of values encompassed by said broad original claim.

In T.770/90 the board ruled that an **unduly broad claim** not supported by the description as originally filed was not a suitable "reservoir" for amendments.

According to T.1120/05, the original **drawings** cannot be considered as a reservoir of features on which the applicant or a patent proprietor can draw when amending the claims.

In T.296/96 the board stated that, when assessing whether a feature had been disclosed in a document, the relevant question was whether a skilled person would seriously contemplate combining the different features cited in that document. That was not the case in the application as filed.

In T.2363/10 the board held that the selection of features disclosed in six out of one hundred and forty-three bullet points represented a particular selection which was not disclosed as such. The skilled person had **no hint or incentive** to choose exactly such a combination of features. The **general statement** "any such apparatus, means or method has or may have any of the following features" did not change this conclusion, since for a combination of selected elements to form a disclosure, additional information was required which directed the skilled person to this combination.

For a case where the original independent claim was combined with features from a plurality of dependent claims referring back to the independent claim separately ("US style" dependencies), see T.1362/15, summarised below in this chapter II.E.1.6.4.

For further cases concerning an unallowable combination of features see e.g. T.659/97, T.1206/07, T.2044/07.

c) Examples of cases where the combination was held to be allowable

In T.1241/03 the board came to the conclusion that claims to formulations comprising compounds in specific concentrations did not need to have a literal basis in a single passage of the application as originally filed, as long as the exact concentrations and ranges claimed for the specific substances were disclosed as such in the original application. The claims at issue did not refer to a "patchwork" of parameters disclosed in non-connected parts of the description, nor had specific values been isolated from examples in a non-allowable way.

In T.330/05 the board considered that the only feature added to the explicit disclosure, namely the concretisation of the polymer material, did not require any "selection" because each of the polymers listed on pages 14 -16 was clearly and unambiguously disclosed as an **appropriate alternative material**.

In T.2514/16 the board considered whether the two amendments were directly and unambiguously derivable in combination from the original application. In its conclusion, it noted that the two amendments amounted to a limitation of a feature that had already been present in original claim 2, with both features characterising the salt that was necessarily used in the claimed method (contrast with T.1115/14). In these circumstances, the amendments were not to be considered a combination of features from different

embodiments that had been combined to artificially construct a new embodiment. Instead, they were a limitation of both the definition and the amount of the base salt stated in original claim 2.

1.6.2 Selections from two lists – singling out a combination of features

a) Principles

In T.727/00 the board held that the combination – unsupported in the application as filed – of one item from each of **two lists** of features meant that although the application might conceptually comprise the claimed subject-matter, it did not disclose it in that particular individual form. For that reason alone, claim 1 of the main request was not supported by the description and contravened Art. 123(2) EPC. See also T.714/08, T.1267/11 and T.3035/19.

According to T.1621/16 it is established case law that, under certain circumstances, amendments based on multiple arbitrary selections from lists represent an extension of the content of the application as filed under Art. 123(2) EPC. However the board noted that most decisions following this well-established approach related to amendments based on lists of non-converging alternatives. The board considered that selections from lists of converging alternatives should not be treated in the same way as selections from lists of non-converging alternatives (see the summary of this decision in point d) below).

In T.1937/17 the board held that, other than for the purposes envisaged in G.1/93 (OJ 1994, 541), a "technical contribution" was of no relevance when deciding on the allowability of amendments under Art. 123(2) EPC. Instead, the gold standard set out in G.2/10 (OJ 2012, 376) was the only criterion that had to be applied.

The board in T.1511/07 held that although the selection of explicitly disclosed borderline values defining several (sub)ranges, in order to form a new (narrower) sub-range, was not contestable under Art. 123(2) EPC when the ranges belong to the same list, the combination of an individual range from this list with another individual range emerging from a second list of ranges and relating to a different feature was not considered to be disclosed in the application as filed, unless there was a **clear pointer to such a combination**. According to T.1149/20 it is established case law that a combination of features originally disclosed separately or selected from several lists may still be directly and unambiguously derivable from the original application in the presence therein of explicit or implicit pointers to said specific combination. For decisions applying this criterion, see in this chapter II.E.1.6.2 c) below.

In T.783/09 the board considered that in the case in hand the skilled person would directly and unambiguously recognise forty-four individual combinations, among them the three "basic" combinations referred to in claim 1. The board referred to the statement in decision T.12/81 (OJ 1982, 296, in which this criterion was used in the context of novelty; see also above chapter I.C.6.2) that if "two classes of starting substances are required to prepare end products and examples of individual entities in each class are given in two lists of some length, then a substance resulting from the reaction of a specific pair from the two

lists can nevertheless be regarded for patent purposes as a selection and hence as new". The board noted that given the term "can" in this citation, the absence of a direct and unambiguous disclosure for individualised subject-matter was not a mandatory consequence of its presentation as elements of lists. Thus, the "disclosure status" of subject-matter individualised from lists had to be determined according to the **circumstances of each specific case** by ultimately answering the question whether or not the skilled person would clearly and unambiguously derive the subject-matter at issue from the document as a whole.

In T 1710/09 the board insisted, however, that, in line with established jurisprudence, "can" within the meaning of T 12/81, was to be taken as a "is to". In view of the implications of freely interpreting this word "can" as in T 783/09, there was deep concern that in this way the uniformity of the disclosure assessment process could not be warranted.

In T 1255/18, referring to T 783/09, the board emphasised that, while conditions had been developed by the case law, such as the so-called "two-lists principle", they were not meant to be additional or alternative conditions, but only a possible aid in certain cases to verify whether the gold standard was satisfied. The central question to be answered therefore was whether the claimed combination of features could be seen by the skilled person as directly and unambiguously derivable from the content as a whole of the parent application as filed.

In T 3035/19 the board was of the opinion that, while the notion of selection from two lists was not meant to take the place of the gold standard, it provided **valuable guidance** and found wide application in case law for the assessment not only of added subject-matter but also of novelty (see T 12/81, OJ 1982, 296, and Case Law of the Boards of Appeal, 9th ed., I.C.6.2). Consequently, in view of the importance of applying a uniform concept of disclosure for the purposes of Art. 54 and 123(2) EPC (see G 2/10, OJ 2012, 376, referring to G 1/03, OJ 2004, 413), and by the same token Art. 76(1) EPC, the board considered that a departure from this established criterion for selection inventions in the assessment of added subject-matter was not appropriate. The board emphasised that the combination of features resulting from selections from two or more lists, or pertaining to separate embodiments, only introduced added subject-matter in the absence of a pointer to that particular combination. In other words, the concept of selection from lists had to be applied with due regard to the whole content of the earlier application as filed.

b) Meaning of "selection from two lists"

The board in T 1374/07, referring to T 811/96, said that a selection of two components (here: fat and enzymes) from one list is in fact equivalent to a twofold selection from two identical lists (see also T 2375/09, T 1506/13). Thus, the board concluded that the addition of the feature "fat and enzymes" to claim 1 infringed Art. 123(2) EPC.

In T 197/08 the board observed that the feature "FIE as the sole active ingredient" was not as such mentioned in the original application. The respondent (opponent) had argued that the introduction of "as the sole active ingredient" in combination with FIE, which was selected from a group of compounds in which it was not its most preferred active

ingredient, constituted an unallowable selection from two lists. The board considered that FIE was selected from a list of six particularly preferred active ingredients and combined monotherapy (as the sole active ingredient), which constituted de facto the only administration form envisaged in the original application. Under these circumstances, the feature was not the result of two selections from different lists, as basically only one selection, i.e. the selection of FIE, had to be made in order to arrive at the feature. As a consequence, the requirements of Art. 123(2) EPC were met.

In T. 236/08 the feature "suitable for administration by inhalation" in claim 1 was not present in the claims as originally filed. A basis for this feature could however be found as part of a list in the description, where it was one way among different possible ways of administration. A consequence was however that the combination of the subject-matter of claim 1 with the subject-matter of any dependent claim which also resulted from a selection among different possibilities would constitute an unallowable selection from multiple lists.

In case T. 209/10 the appellant (patent proprietor) alleged that claim 1 did not concern an unallowable selection but merely the deletion of some option(s) from one list. The board however, considered that the application as originally filed disclosed the technical effect of prevention of bone loss, which was not identical to the prevention of post-menopausal osteoporosis in a post-menopausal woman as described in claim 1 as granted. Post-menopausal women were selected from a list of several possible options for the patients to be treated. A further selection also took place in claim 1, namely that concerning the form of the medicament as a tablet or capsule. The oral route did not equate with the selection of tablets and capsules since other forms such as solutions and suspensions might also be possible. Moreover, the patient was identified as an aging human and there was no preference for post-menopausal women to be linked to a particular dosage form. The board concluded that claim 1 singled out subject-matter which was not disclosed in an individualised manner in the application as originally filed.

According to the board in T. 2134/10, there was no combination of independent features from two lists. The board found that a specific **degree of sequence identity** (in claim 1(d): "at least 95%") is not a property that, in combination with a particular molecule selected from Table 1 (disclosing 113 open reading frames encoding potentially antigenic peptides of *S. pneumoniae*), could single out a particular molecule or confer properties to the claimed subject matter not directly and unambiguously derivable from the application as filed.

In T. 1581/12 claim 1 was directed to a combination of sequences SEQ ID NO 4, 6 with fragment length of "20 or more consecutive amino acids", and a selection of those fragments containing an epitope of these sequences. In the parent application, sequences SEQ ID NO 4, 6 were disclosed as members of a list of several hundred sequences. Likewise, the fragment length indicated in claim 1 was disclosed in the parent application within a long list of lengths to be selected "depending on the particular sequence". Distinguishing its case from T. 583/09 and T. 2134/10 the board observed that the values of the fragment length disclosed in the parent application would be understood by a skilled person to apply to each and every member of the list of disclosed amino acid sequences (SEQ ID NOs), wherein the upper length of these fragments varied "depending on the